

		Defendants also argue that amendment is futile because the proposed First Amended Complaint removes allegations that Defendants’ alleged interference with Plaintiff’s easement must be “unreasonable” to be actionable. Plaintiff responds that Defendants mistakenly rely on cases concerning privately negotiated easements, whereas the easement in this matter was acquired through eminent domain and prohibits structures that interfere with Plaintiff’s “full use and enjoyment.” Where the opposing party claims the proposed pleading is futile, “[l]eave to amend should be denied only where the facts are not in dispute, and the nature of the plaintiff’s claim is clear, but under substantive law, no liability exists and no amendment would change the result.” (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428.) Defendants have not met this burden. In sum, the motion is GRANTED. Plaintiff SHALL separately file and serve the proposed First Amended Complaint within 10 days of this ruling. Plaintiff to give notice.
5	Calvillo Martinez vs. Martinez	<u>Motion to Advance Trial Date</u> The court DENIES Plaintiffs CLAUDIA VERONICA CALVILLO MARTINEZ and KAMAL ALEXANDER BENITEZ’s motion to advance the trial date. California Rules of Court, rule 3.1335 provides in relevant part, “A the party seeking to advance.... A case for trial must make this request by noticed motion or ex parte application under the rules in Chapter 4 of this division.” (Cal. Rules Ct., rule 3.1335(a).) “The request may be granted only upon an affirmative showing by the moving party of good cause based on a declaration served and filed with the motion or application.” (Cal. Rules of Ct., rule 3.1335(b).)